

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #10	CCRB Case #: 201510475	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 11/07/2015 12:45 AM	Location of Incident: Inside Coffey Park	18 Mo. SOL 5/7/2017	Precinct: 76		
Date/Time CV Reported Fri, 12/11/2015 3:14 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 12/11/2015 3:14 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Israel Monjaras	21221	950901	PSA 1
2. POM John Roufanis	15926	953343	PSA 1
3. An officer			
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jonathan Sudsky	737	944296	PSA 1
2. SGT Silas Samuel	3009	942496	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . POM John Roufanis	Abuse: Police Officer John Roufanis stopped § 87(2)(b)	A . Exonerated
B . POM Israel Monjaras	Abuse: Police Officer Israel Monjaras stopped § 87(2)(b)	B . Exonerated
C . POM Israel Monjaras	Discourtesy: Police Officer Israel Monjaras spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Israel Monjaras	Force: Police Officer Israel Monjaras used physical force against § 87(2)(b)	D . Exonerated
E . POM Israel Monjaras	Force: Police Officer Israel Monjaras used pepper spray against § 87(2)(b)	E . Exonerated
F . Officers	Force: Officers used pepper spray against § 87(2)(b)	F . Exonerated
G . An officer	Force: An officer struck § 87(2)(b) with a baton.	G . Exonerated
H . An officer	Force: An officer used physical force against § 87(2)(b)	H . Officer(s) Unidentified

Case Summary

On December 11, 2015, this complaint was filed by § 87(2)(b) at the CCRB with his criminal attorney § 87(2)(b) present. On November 7, 2015, at approximately 12:45 a.m., § 87(2)(b) was sitting on a park bench inside Coffey Park in Brooklyn with his dog – a 9 year-old terrier, weighing approximately 45 pounds. PO Israel Monjaras and PO John Roufanis, both of PSA 1 entered the park driving a marked 2 seated Smart Car. The officers approached § 87(2)(b) and asked for identification (**Allegation A and B**). § 87(2)(b) stated that he did not have identification on him. As the officers continued to speak to § 87(2)(b) PO Monjaras allegedly said to § 87(2)(b) “I’m tired of your bullshit.” (**Allegation C**). PO Monjaras then placed a handcuff on one of § 87(2)(b) s wrists. § 87(2)(b) admittedly pulled his arm away from PO Monjaras. PO Monjaras then allegedly kicked § 87(2)(b) in the shin (**Allegation D**). § 87(2)(b) s dog then bit PO Monjaras. PO Monjaras then allegedly deployed OC spray at both § 87(2)(b) and his dog (**Allegation E**). Unidentified back-up officers arrived and also allegedly deployed OC spray, although § 87(2)(b) could not see them due to the effect of the OC spray (**Allegation F**). § 87(2)(b) also felt strikes to his shin with what he believed was a baton by an unidentified officer (**Allegation G**). During this, § 87(2)(b) was holding his dog at his side. § 87(2)(b) then released his dog and fell onto the ground in a fetal position. An unidentified officer then stepped on his head (**Allegation H**) and § 87(2)(b) was handcuffed. § 87(2)(b) was arrested for § 87(2)(b)

§ 87(2)(g)

The only video available of the incident, was a cell phone video provided by § 87(2)(b) taken by an individual whom § 87(2)(b) refused to identify. The video was very dark, and did not show any discernable human figures, but captured the voice of § 87(2)(b) yelling in the distance.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to § 87(2)(b) s arrest, as well as the concurrent IAB investigation.
- On § 87(2)(b), § 87(2)(b) filed a notice of claim alleging false arrest, unlawful imprisonment, assault, battery, excessive force, pain and suffering, mental anguish, among other things, and seeking damages in the amount of five million (\$5,000,000) as redress (**Board Review 10**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the only complaint filed by § 87(2)(b) (Board Review 2).
- This was the first complaint filed against PO Roufanis during his 4 year tenure at the NYPD. § 87(2)(g)
- This was the first complaint filed against PO Monjaras during his 5 year tenure at the NYPD. Subsequently, CCRB case number 201700926 has been filed against him, with one force allegation pleaded against him currently. That case is still under investigation § 87(2)(g)

Potential Issues

- § 87(2)(g)
- Sgt. Sudskey, PO Monjaras and PO Roufanis were able to review their IAB interviews prior to their CCRB interviews and provided comprehensive statements, while Sgt. Samuel, who was not interviewed by IAB, did not recall much of the incident at the time of his CCRB interview.

Findings and Recommendations

Explanation of Subject Officer Identification

- Both PO Monjaras and PO Roufanis were involved in stopping § 87(2)(b) on suspicion of smoking marijuana and violating park rules, § 87(2)(g)
- § 87(2)(b) alleged that the officer who spoke discourteously to him, kicked him, and used pepper-spray on him was the officer who was bitten by his dog. By all accounts, this was PO Monjaras, who fit § 87(2)(b)'s description. § 87(2)(g)
- § 87(2)(b) could not see any other officer who allegedly pepper-sprayed him, struck him with a baton or stepped on his head due to the effects of being pepper-sprayed. Officers from both the 76th Precinct and PSA 1 responded to the incident. All of the officers identified by the investigation denied these allegations, § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer John Roufanis stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Israel Monjaras stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was present inside of Coffey Park at approximately 12:45 a.m. § 87(2)(g)

§ 87(2)(b) stated that he was walking his dog inside the park before sitting down on a bench. Although § 87(2)(b) denied that he was smoking anything while inside the park, he admitted that he had been smoking marijuana “all day” prior to entering the park and that he was “100 percent sure” that there was the odor of marijuana on his person. § 87(2)(b) was not aware of the closing time of the park (**Board Review 3**).

PO Monjaras (**Board Review 4**) and PO Roufanis (**Board Review 5**) stated that they observed § 87(2)(b) sitting on a bench inside the park after its closing time and approached him on that basis. Both officers stated that they observed § 87(2)(b) smoking a cigarette while seated on the park bench. PO Roufanis stated that he smelled the odor of burnt marijuana immediately upon entering the park and that the odor appeared to emanate from § 87(2)(b) as he approached him. PO Monjaras stated that he detected the odor as he approached § 87(2)(b). Both officers also stated that when § 87(2)(b) observed them, he threw the cigarette to the ground and stamped it out. Both officers stated they stopped § 87(2)(b) because he was in violation of park rules by being present in the park after closure and that they suspected him of smoking marijuana in public. Alleged marijuana was recovered on the ground in the vicinity of the park bench (**Board Review 6**).

According to the signage posted outside of the park, Coffey Park closes at 10 p.m. (**Board Review 7**)

According to NYC Parks Regulations §1-03 a. 1. “Persons may enter and use the parks from 6:00 a.m. until 1:00 a.m. unless other open hours are posted at any park.” Section c. 1. Further states, “Violation of any paragraph of this subdivision shall subject the violator to a civil penalty, as specified in the Department’s penalty schedule. See 56 RCNY §1-07. In addition, except as otherwise provided below, such violation shall also constitute an offense (classified as a “violation” under the Penal Law), which can be punished by imprisonment of up to one day or a fine of not more than \$200.” (**Board Review 8**)

§ 87(2)(g)
It is therefore recommended that **Allegations A** and **B** be closed as **Exonerated**.

Allegation C – Discourtesy: Police Officer Israel Monjaras spoke discourteously to § 87(2)(b)

It is undisputed that PO Monjaras and PO Roufanis asked § 87(2)(b) for identification and that he did not have identification on him. It is also undisputed that a contentious verbal exchange

ensued. However, both police officers accused § 87(2)(b) of being uncooperative in their requests for his name, while § 87(2)(b) claimed that he was cooperative. § 87(2)(g)

§ 87(2)(b) stated that he did not have his identification on him and offered to retrieve his identification from his girlfriend who resided in a nearby building, but the officers declined his offer. He stated that he began to provide his name and other information verbally to PO Roufanis, while PO Monjaras was speaking to him. § 87(2)(b) ignored PO Monjaras and did not hear what he said, but then turned to PO Monjaras and stated, “Officer, I’m no longer talking to you. I’m giving my information to your partner.” § 87(2)(b) alleged that PO Monjaras responded, “I’m tired of your bullshit.”(Board Review 3)

PO Monjaras and PO Roufanis both stated that they requested § 87(2)(b)'s identification and that he stated he did not have his identification on him. Both officers also stated that they then asked him for his name verbally, and that § 87(2)(b) refused to provide it. Both officers denied that PO Monjaras cursed at § 87(2)(b) or stated, “I’m tired of your bullshit.”

§ 87(2)(g)

therefore it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D – Force: Police Officer Israel Monjaras used physical force against § 87(2)(b)

Allegation E – Force: Police Officer Israel Monjaras used pepper spray against § 87(2)(b)

Allegation F – Force: Officers used pepper spray against § 87(2)(b)

Allegation G – Force: An officer struck § 87(2)(b) with a baton.

It is not in dispute that when PO Monjaras placed a handcuff on one of § 87(2)(b)'s wrists, § 87(2)(b) pulled his arm away from PO Monjaras. It is not in dispute that at some point, an officer who was not PO Monjaras or PO Roufanis deployed pepper-spray at § 87(2)(b)'s dog. § 87(2)(g)

§ 87(2)(b) stated that immediately after PO Monjaras made the comment, “I’m tired of your bullshit,” PO Monjaras, removed his handcuffs from his belt and placed it on § 87(2)(b)'s left wrist. § 87(2)(b) stated that he was surprised and felt pain, so he instinctively pulled his left arm towards his stomach, pulling the handcuffs out of PO Monjaras’s hands. PO Monjaras then allegedly kicked § 87(2)(b) in the right shin. § 87(2)(b)'s dog, a 45 pound terrier then bit PO Monjaras in the left leg. PO Monjaras allegedly deployed pepper-spray both at § 87(2)(b) and his dog, affecting § 87(2)(b)'s eyes. § 87(2)(b) claimed that PO Monjaras continuously discharged pepper-spray at him for the entire time it took back-up officers to arrive, which he estimated was one to two minutes. § 87(2)(b) alleged that all of the back-up officers, whom he could not see, upon arrival also discharged pepper-spray at him. At this

time, § 87(2)(b) still had one hand in handcuffs and was holding his dog in the other arm. § 87(2)(b) felt three or four blows to his left shin from what he believed was a baton by an officer he could not see. § 87(2)(b) released his dog at that point. **(Board Review 3)**

PO Roufanis and PO Monjaras were consistent in stating that § 87(2)(b) pulled his handcuffed arm away from PO Monjaras, though they maintained that PO Monjaras held onto the other end of the handcuffs. They described a tug-of-war ensuing between § 87(2)(b) and PO Monjaras over the handcuffs. They both denied that PO Monjaras kicked § 87(2)(b). The dog then bit PO Monjaras twice, once in the calf, causing bleeding and once again in the groin area near the inner thigh, causing no bleeding. AIDED **(Board Review 11)** and LOD reports **(Board Review 12)** affirm PO Monjaras's injuries and indicate that he received Line of Duty Injury status. Both officers denied that either of them deployed pepper-spray at either § 87(2)(b) or the dog. PO Roufanis kicked the dog to dislodge it from PO Monjaras, and PO Monjaras jumped on top of the park bench to escape the dog. Both officers described the dog as a pit bull and estimated its size as 80-90 pounds, but both officers also stated that they were unsure of how to describe the size of the dog accurately. PO Roufanis then called a 10-85 request for additional units. PO Monjaras and PO Roufanis both stated that a large group of officers whom they could not recall arrived in response to their call for assistance and that these officers escorted them away from § 87(2)(b) and § 87(2)(b)'s dog, and took control of the handcuffs from PO Monjaras. They did not see any officer discharge pepper-spray at § 87(2)(b) or strike him with batons. Sgt. Sudskey and Sgt. Samuel, who arrived as back-up, as well as PO Roufanis and PO Monjaras all stated that they later heard that pepper-spray was used by an unknown officer against § 87(2)(b)'s dog. Sgt. Sudskey and Sgt. Samuel stated that although they did not observe § 87(2)(b) closely, it did not appear that he had been affected by pepper-spray because he was yelling and did not appear to have respiratory problems. Sgt. Sudskey and Sgt. Samuel did not see any officer strike § 87(2)(b) with batons. PO Monjaras and PO Roufanis's memo book entries are consistent with their CCRB statements.

§ 87(2)(a) PHL § 18(6)

The video provided by § 87(2)(b) was recorded on a cell phone by a friend of § 87(2)(b)'s girlfriend whom § 87(2)(b) refused to identify. § 87(2)(b) stated that the individual arrived in response to § 87(2)(b)'s crying for help after he was handcuffed. The video shows a dark exterior location, with only flashing police lights visible at a distance. No human figure or action could be observed. § 87(2)(b)'s voice can be heard yelling loudly in the distance repeatedly, "I want my lawyer!" and "This is crazy!" The video was 23 seconds long.



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On the date of the incident, prior to the adoption of current patrol guide procedure concerning the use of force on July 7, 2016, Patrol Guide Procedure 203-11 stated, “Only that amount of force necessary to overcome resistance will be used to effect an arrest or take a mentally ill or emotionally disturbed person into custody.” (**Board Review 9**)

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations D, E, F and G** be closed as **Exonerated**.

Allegation H – Force: An officer used physical force against § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(b) [REDACTED] stated that after he was struck by a baton, he fell face-down onto the ground in front of the park bench on which he had been sitting and was handcuffed with his hands behind his back. An officer whom § 87(2)(b) [REDACTED] could not see allegedly placed a boot on his face and stepped on his head for approximately fifteen minutes as he remained on the ground.

PO Monjaras and PO Roufanis stated that after back-up officers arrived, they went to an ambulance and did not see § 87(2)(b) [REDACTED] afterwards. Sgt. Sudskey and Sgt. Samuel, who

arrived as back-up both denied that any officer placed a boot on § 87(2)(b)'s face and stepped on his head as alleged. Sgt. Sudskey whose recollection of the incident was stronger than Sgt. Samuel's at the time of his CCRB interview, stated that he saw § 87(2)(b) either lying or sitting on the ground in handcuffs and that § 87(2)(b) was yelling out calling for his lawyer. The video provided by § 87(2)(b) was played during Sgt. Sudskey's interview and he confirmed that the voice yelling in the video was § 87(2)(b) calling for his lawyer.

§ 87(2)(g)

_____, it is recommended that **Allegation H** be closed as **Officer Unidentified**.

Squad: 10

Investigator:	_____	<u>Simon Wang</u>	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date